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CASE #	CASE NAME	HEARING NAME
CVRI2501550	ALS INTERNATIONAL, LLC. VS SONG	MOTION TO COMPEL NON-PARTY STYLE LINK LOGISTICS, LLC'S COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

Tentative Ruling:

CCP § 1987.1 authorizes the Court, upon motion, to quash, modify, or direct compliance with a deposition subpoena on such terms as the court deems appropriate. A motion to compel further production of documents from a subpoenaed deponent “shall be accompanied by a meet and confer declaration under Section 2016.040.” (CCP § 2025.480(b).) That declaration “shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP § 2016.040.)

The meet-and-confer requirement is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. (*Townsend v. Sup. Ct.* (1998) 61 Cal.App.4th 1431, 1435.) The statute requires “a serious effort at negotiation and informal resolution,” including attempts by counsel “to talk the matter over, compare their views, consult, and deliberate.” (*Id.* at 1438–39.)

Shein contends the Sullivan Declaration reflects only email correspondence and does not establish an in-person, telephone, or videoconference conferral. (Shein’s Opp. 4:21–26.) The record does not support that contention. The Sullivan Declaration and its exhibits document a Zoom meet-and-confer held on June 8, 2026 between ALS’s counsel and Shein’s in-house counsel. (Sullivan Decl. ¶ 5, Ex. 4.) Shein agreed at that meeting to review its records and supplement its production, and extended ALS’s deadline to move to compel. (*Id.*) Counsel then engaged in a further telephonic conferral on August 17, 2026, during which Shein walked through the requirements of Evid. Code § 1561 with ALS and offered to produce a Code-compliant custodial affidavit in exchange for ALS taking the motion off calendar. (Pietz Decl. ¶ 13; Sullivan Reply Decl. ¶¶ 10, 14.) ALS’s Sullivan Reply Declaration further documents that ALS’s counsel made repeated written requests for telephone conferences that Shein’s in-house counsel declined or ignored, and that Shein’s in-house counsel never provided a telephone number in his emails, the letter accompanying Shein’s production, or any public listing. (Sullivan Reply Decl. ¶¶ 3–4.)

Although ALS met and conferred with Shein via Zoom, thereby satisfying section 2016.040’s channel requirement, the record does not reflect a good faith attempt to informally resolve each of the specific issues now before the Court. Section 2016.040 requires a good faith attempt “to informally resolve **each issue** presented by the motion.” (CCP § 2016.040(a) [emphasis added].) That obligation calls for serious negotiation, not a single conversation followed by an impasse. (*Townsend, supra*, 61 Cal.App.4th at 1438–39.) Where informal resolution efforts have not resolved each issue and further efforts are likely to be fruitful, the appropriate remedy is to specify

additional meet-and-confer efforts rather than to deny the motion outright. (*Obregon v. Sup. Ct.* (1998) 67 Cal.App.4th 424, 431–34.)

Here, the parties' two live conferences did not produce agreement on any of the four disputed categories, and Shein's post-filing concessions on three of those categories—the section 1561 custodian affidavit, the privilege log, and the email attachments—have materially narrowed the dispute since the motion was filed. A further live meet and confer is therefore both necessary to determine what, if anything, remains for the Court to decide, and on this record likely to be fruitful in narrowing or resolving the outstanding issues.

Three of the four merits categories in ALS's motion are the subject of Shein's affirmative representations or concessions:

- **Privilege log.** Shein represents that “there are no responsive documents being withheld on the basis of privilege, so this issue is moot.” (Shein's Opp. 9:12–13.) Once that representation is confirmed in writing and incorporated into Shein's Evid. Code § 1561 custodian affidavit, no privilege log is required and this category resolves.
- **Custodian affidavit.** Although Shein has represented since August 14, 2026 that it will serve a Code-compliant section 1561 custodian affidavit, as of the reply date (September 2, 2026) Shein has not done so. ALS also correctly notes that Shein's May 29, 2026 production letter does not comply with section 1561(b) because it does not state whether the production is complete, only partial, or subject to any privilege-based withholding. (Evid. Code § 1561(b) [“If the business has none of the records described, or only part thereof, the custodian . . . shall so state in the affidavit . . .”].) Shein further notes that some produced materials may fall outside section 1561 because they were not prepared or collected contemporaneously “in the ordinary course of business.” (Evid. Code § 1561(a)(3).) The scope, form, and date of the affidavit are matters for the parties to finalize in a further conferral.
- **Email attachments.** Shein represents that the disputed attachments were sent directly to ALS's CEO and Operations Manager, and that ALS's counsel confirmed on August 17 that ALS has them. (Shein's Opp. 5:17–25; Pietz Decl. ¶ 13.) In an August 14, 2026 meet-and-confer email, ALS clarified that it does not seek re-collection or re-production, but requests that Shein's custodian “identify, for each produced email, the attachment(s) sent with it by date, time, sender/recipient and file name or description and confirm that this list is complete.” (Pietz Decl. ¶ 7, Ex. C.) This narrowed request is capable of resolution through an itemized exchange between counsel.
- **“Full report.”** Only the purported “full report” involves a genuine factual dispute, not merely a documentation gap, that a further conferral may not fully resolve. ALS acknowledges that Shein “cannot produce what it does not have” (Pl.'s Reply 4:24), but points to the February 3, 2025 email from Shein's Director of Transportation Management, Richard Marks, stating that Shein “successfully completed the reconciliation process” for a \$931,718.18 loss “for which we can substantiate claims with corresponding reference documentation,” and to the attached summary report referencing delivery intake forms, reconciliation checklists, bills of lading, and photographs (Pl.'s Reply 5:14–25 [citing Sullivan

Reply Decl. ¶ 17, Ex. 5]). Whether those underlying substantiating documents exist in Shein's possession, and if they do not, whether Shein has satisfied its obligation under section 1561(b) to so state in a sworn custodian affidavit, can be addressed at the continued hearing if the issue remains live after Shein serves its promised affidavit.

For these reasons, the Court **CONTINUES** the hearing and **ORDERS** the parties to further meet and confer, in person, by telephone, or by videoconference, addressing the following issues on the following deadlines:

- (1) **Evid. Code § 1561 custodian affidavit.** Shein shall serve on ALS a Code-compliant Evid. Code § 1561 custodian affidavit no later than September 21, 2026, addressing (i) *scope* — which categories of produced documents the affidavit covers, and identification of any produced materials Shein contends were not prepared or collected in the ordinary course of business and are therefore excluded from the affidavit's scope; and (ii) *completeness* — the section 1561(b) statement of whether Shein has produced all responsive records or only part thereof.
- (2) **Privilege Log.** Shein's written confirmation that no responsive documents are being withheld on the basis of privilege, to be incorporated into and served with the section 1561 custodian affidavit.
- (3) **Email attachments.** Within 5 days of service of Shein's section 1561 custodian affidavit, Shein shall identify, by email date, time, sender/recipient, and file name or description, the specific attachments accompanying each produced email; and ALS shall identify, in writing, any specific attachment ALS contends it does not have.
- (4) **The "full report."** Confirmation by Shein of the scope of its search and its representation that no additional responsive report has been located, together with a statement in substance under section 1561(b) if Shein has none or only part of the substantiating materials referenced in the February 3, 2025 email and attached summary; and confirmation from ALS whether it can provide any additional information (dates, custodians, subject matter) that would assist Shein in a further search.
- (5) **Fee requests.** The parties shall meet and confer regarding whether their competing fee requests under CCP §§ 1987.1, 1987.2, 2020.240, and 2025.480(j) can be resolved without judicial intervention.

Ruling: **CONTINUE** the hearing on Plaintiff's motion to October 21, 2026 and **ORDER** the parties to further meet and confer in person, by telephone, or by videoconference, on the issues identified above, and to file a joint statement no later than 10 days before the continued hearing date identifying any issues that remain for the Court's resolution. All sanctions requests are reserved for the continued hearing.